

Effective 7/1/2026

Chapter 5 Office For Victims Of Crime

Part 1 General Provisions

75E-5-101 Definitions for chapter.

As used in this chapter:

- (1) "Accomplice" means an individual who has engaged in criminal conduct as described in Section 76-2-202.
- (2) "Advocacy services provider" means the same as that term is defined in Section 77-38-403.
- (3) "Bodily injury" means physical pain, illness, or any impairment of physical condition.
- (4) "Claimant" means any of the following claiming compensation under this chapter:
 - (a) a victim;
 - (b) a dependent of a deceased victim; or
 - (c) an individual or representative who files a compensation claim on behalf of a victim.
- (5) "Child" means an unemancipated individual who is under 18 years old.
- (6) "Collateral source" means any source of benefits or advantages for economic loss otherwise reparable under this chapter that the claimant has received, or that is readily available to the claimant from:
 - (a) the offender;
 - (b) the insurance of the offender or the victim;
 - (c) the United States government or any agencies of the United States government, a state or any of the state's political subdivisions, or an instrumentality of two or more states, except in the case on nonobligatory state-funded programs;
 - (d) social security, Medicare, and Medicaid;
 - (e) state-required temporary nonoccupational income replacement insurance or disability income insurance;
 - (f) workers' compensation;
 - (g) wage continuation programs of any employer;
 - (h) proceeds of a contract of insurance payable to the claimant for the loss the claimant sustained because of the criminally injurious conduct;
 - (i) a contract providing prepaid hospital and other health care services or benefits for disability; or
 - (j) veteran's benefits, including veteran's hospitalization benefits.
- (7) "Compensation award" means money or other benefits provided to a claimant or to another on behalf of a claimant after a compensation claim is approved by the office.
- (8) "Compensation claim" means a claimant's request or application made to the office for a compensation award.
- (9)
 - (a) "Compensation specialist" means an individual employed by the office to investigate a claimant's request for compensation and award compensation under this chapter.
 - (b) "Compensation specialist" includes the director when the director is acting as a compensation specialist.
- (10)
 - (a) "Confidential record" means a record in the custody of the office that relates to a claimant's eligibility for a compensation award.

- (b) "Confidential record" includes:
 - (i) a compensation claim;
 - (ii) any correspondence regarding:
 - (A) the approval or denial of a compensation claim; or
 - (B) the payment of a compensation award;
 - (iii) a document submitted to the office in support of a compensation award;
 - (iv) a medical or mental health treatment plan; or
 - (v) an investigative report provided to the office by a law enforcement agency.
- (11) "Criminal justice system victim advocate" means the same as that term is defined in Section 77-38-403.
- (12)
 - (a) "Criminally injurious conduct" other than acts of war declared or not declared means conduct that:
 - (i) is or would be subject to prosecution in this state under Section 76-1-201;
 - (ii) occurs or is attempted;
 - (iii) causes, or poses a substantial threat of causing, bodily injury or death;
 - (iv) is punishable by fine, imprisonment, or death if the individual engaging in the conduct possessed the capacity to commit the conduct; and
 - (v) does not arise out of the ownership, maintenance, or use of a motor vehicle, aircraft, or water craft, unless the conduct is:
 - (A) intended to cause bodily injury or death;
 - (B) punishable under Title 76, Chapter 5, Offenses Against the Individual; or
 - (C) chargeable as an offense for driving under the influence of alcohol or drugs.
 - (b) "Criminally injurious conduct" includes a felony violation of Section 76-7-101 and other conduct leading to the psychological injury of an individual resulting from living in a setting that involves a bigamous relationship.
- (13)
 - (a) "Dependent" means a natural person to whom the victim is wholly or partially legally responsible for care or support.
 - (b) "Dependent" includes a child of the victim born after the victim's death.
- (14) "Dependent's economic loss" means loss after the victim's death of contributions of things of economic value to the victim's dependent, not including services the dependent would have received from the victim if the victim had not suffered the fatal injury, less expenses of the dependent avoided by reason of the victim's death.
- (15) "Dependent's replacement services loss" means loss reasonably and necessarily incurred by the dependent after the victim's death in obtaining services in lieu of those the decedent would have performed for the victim's benefit if the victim had not suffered the fatal injury, less expenses of the dependent avoided by reason of the victim's death and not subtracted in calculating the dependent's economic loss.
- (16) "Director" means the director of the office.
- (17) "Disposition" means the sentencing or determination of penalty or punishment to be imposed upon an individual:
 - (a) convicted of a crime;
 - (b) found delinquent; or
 - (c) against whom a finding of sufficient facts for conviction or finding of delinquency is made.
- (18)

- (a) "Economic loss" means economic detriment consisting only of allowable expense, work loss, replacement services loss, and if injury causes death, dependent's economic loss and dependent's replacement service loss.
- (b) "Economic loss" includes economic detriment even if caused by pain and suffering or physical impairment.
- (c) "Economic loss" does not include noneconomic detriment.
- (19) "Elderly victim" means an individual who is:
 - (a) 60 years old or older; and
 - (b) a victim.
- (20) "Fraudulent claim" means a filed compensation based on material misrepresentation of fact and intended to deceive the compensation staff for the purpose of obtaining compensation funds for which the claimant is not eligible.
- (21) "Fund" means the Crime Victim Compensation Fund created in Section 75E-5-302.
- (22)
 - (a) "Interpersonal violence" means an act involving violence, physical harm, or a threat of violence or physical harm, that is committed by an individual who is or has been in a domestic, dating, sexual, or intimate relationship with the victim.
 - (b) "Interpersonal violence" includes any attempt, conspiracy, or solicitation of an act described in Subsection (22)(a).
- (23) "Law enforcement agency" means a public or private agency having general police power and charged with making arrests in connection with enforcement of the criminal statutes and ordinances of this state or any political subdivision of this state.
- (24) "Law enforcement officer" means the same as that term is defined in Section 53-13-103.
- (25)
 - (a) "Medical examination" means a physical examination necessary to document criminally injurious conduct.
 - (b) "Medical examination" does not include mental health evaluations for the prosecution and investigation of a crime.
- (26) "Mental health counseling" means outpatient and inpatient counseling that:
 - (a) is necessary as a result of criminally injurious conduct; and
 - (b) is subject to rules made by the office in accordance with Title 63G, Chapter 3, Utah Administrative Rulemaking Act.
- (27) "Misconduct" means conduct by the victim that was attributable to the injury or death of the victim as provided by rules made by the office in accordance with Title 63G, Chapter 3, Utah Administrative Rulemaking Act.
- (28) "Noneconomic detriment" means pain, suffering, inconvenience, physical impairment, and other nonpecuniary damage, except as provided in this chapter.
- (29) "Nongovernment organization victim advocate" means the same as that term is defined in Section 77-38-403.
- (30) "Nonpublic restitution record" means a restitution record that contains a claimant's medical or mental health information.
- (31) "Pecuniary loss" does not include loss attributable to pain and suffering except as otherwise provided in this chapter.
- (32) "Offender" means an individual who has violated Title 76, Criminal Offenses, through criminally injurious conduct regardless of whether the individual is arrested, prosecuted, or convicted.
- (33) "Offense" means a violation of Title 76, Criminal Offenses.
- (34) "Office" means the Office for Victims of Crime created in Section 75E-5-102.

- (35) "Perpetrator" means the individual who actually participated in the criminally injurious conduct.
- (36) "Public restitution record" means a restitution record that does not contain a claimant's medical or mental health information.
- (37) "Replacement service loss" means expenses reasonably and necessarily incurred in obtaining ordinary and necessary services in lieu of those the injured individual would have performed, not for income but the benefit of the injured individual or the injured individual's dependents if the injured individual had not been injured.
- (38)
- (a) "Representative" means the victim, immediate family member, legal guardian, attorney, conservator, executor, or an heir of an individual.
- (b) "Representative" does not include a service provider or collateral source.
- (39) "Restitution" means the same as that term is defined in Section 77-38b-102.
- (40)
- (a) "Restitution record" means a record documenting payments made to, or on behalf of, a claimant by the office that the office relies on to support a restitution request made in accordance with Section 77-38b-205.
- (b) "Restitution record" includes:
- (i) a notice of restitution;
- (ii) an itemized list of payments;
- (iii) an invoice, receipt, or bill submitted to the office for reimbursement; and
- (iv) any documentation that the office relies on to establish a nexus between an offender's criminally injurious conduct and a compensation award made by the office.
- (41) "Secondary victim" means an individual who is traumatically affected by the criminally injurious conduct subject to rules made by the office in accordance with Title 63G, Chapter 3, Utah Administrative Rulemaking Act.
- (42) "Service provider" means an individual or agency who provides a service to a claimant for a monetary fee, except attorneys as provided in Section 75E-5-314.
- (43) "Serious bodily injury" means the same as that term is defined in Section 76-1-101.5.
- (44) "Sexual assault" means the same as that term is defined in Section 75E-3-101.
- (45) "Strangulation" means any act involving the use of unlawful force or violence that:
- (a) impedes breathing or the circulation of blood; and
- (b) is likely to produce a loss of consciousness by:
- (i) applying pressure to the neck or throat of an individual; or
- (ii) obstructing the nose, mouth, or airway of an individual.
- (46) "Substantial bodily injury" means the same as that term is defined in Section 76-1-101.5.
- (47)
- (a) "Victim" means an individual who suffers bodily or psychological injury or death as a direct result of:
- (i) criminally injurious conduct; or
- (ii) the production of child sexual abuse material in violation of Section 76-5b-201 or 76-5b-201.1 if the individual is a minor.
- (b) "Victim" does not include an individual who participated in or observed the judicial proceedings against an offender unless otherwise provided by statute or rule made in accordance with Title 63G, Chapter 3, Utah Administrative Rulemaking Act.
- (48) "Work loss" means loss of income from work the injured victim would have performed if the injured victim had not been injured and expenses reasonably incurred by the injured victim in obtaining services in lieu of those the injured victim would have performed for income,

reduced by any income from substitute work the injured victim was capable of performing but unreasonably failed to undertake.

Renumbered and Amended by Chapter 291, 2026 General Session

75E-5-102 Office for Victims of Crime -- Purpose.

- (1) There is created the Office for Victims of Crime within the department.
- (2) The purpose of the office is to assist victims of criminally injurious conduct who may be eligible for assistance from the fund.

Enacted by Chapter 291, 2026 General Session

75E-5-103 Appointment of director.

- (1) The commissioner shall appoint a director to carry out the provisions of this chapter.
- (2) The director shall:
 - (a) be an experienced administrator with a background in at least one of the following fields:
 - (i) social work;
 - (ii) psychology;
 - (iii) criminal justice;
 - (iv) law; or
 - (v) another field related to the fields described in Subsections (2)(a)(i) through (iv);
 - (b) demonstrate an understanding of the needs of crime victims and of services to victims; and
 - (c) devote the director's time and capacity to the director's duties.

Renumbered and Amended by Chapter 291, 2026 General Session

Part 2

Office Responsibilities

75E-5-201 Definitions for part.

Reserved.

Enacted by Chapter 291, 2026 General Session

75E-5-202 Duties of the office.

- (1) The office shall:
 - (a) prescribe policy for the office;
 - (b) under the direction of the commissioner, make rules to implement and administer this chapter in accordance with Title 63G, Chapter 3, Utah Administrative Rulemaking Act, which may include setting ceilings on compensation, defining terms not specifically stated in this chapter, and establishing rules governing attorney fees;
 - (c) prescribe forms for applications for compensation;
 - (d) render an annual report to the governor and the Legislature regarding the staff's activities;
 - (e) formulate standards for the uniform application of Section 75E-5-305, taking into consideration the rates and amounts of compensation payable for injuries and death under other laws of this state and the United States;

- (f) allocate money available in the fund to victims of criminally injurious conduct for compensation claims;
 - (g) allocate money available to other victim services as provided by administrative rule made in accordance with Title 63G, Chapter 3, Utah Administrative Rulemaking Act, once a sufficient reserve has been established for compensation claims;
 - (h) as authorized by the department, allocate and disburse funds made available to the office by the United States, the state, foundations, corporations, or other entities or individuals to subgrantees from private, non-profit, and governmental entities operating qualified statewide assistance programs; and
 - (i) provide educational materials to a law enforcement agency to assist the law enforcement agency with informing a victim of a sexual assault of the victim's right to request testing of the victim and of the offender alleged to have committed the sexual assault as described in Section 53-10-802.
- (2) All rules, or other statements of policy, along with application forms specified by the office, are binding upon the director, the compensation specialists, assistance specialists, and other staff.

Renumbered and Amended by Chapter 291, 2026 General Session

75E-5-203 Director duties and powers.

- (1) The director shall:
- (a) hire staff, including compensation and assistance specialists, as necessary;
 - (b) act when necessary as a compensation specialist in deciding an initial compensation claim;
 - (c) possess the same investigation and decision-making authority as the compensation specialists;
 - (d) hear appeals from the decisions of the compensation specialists, unless the director acted as a compensation specialist on the initial compensation claim;
 - (e) serve as the public relations representative of the office;
 - (f) provide for payment of all administrative salaries, fees, and expenses incurred by the staff of the office, to be paid out of appropriations from the fund;
 - (g) cooperate with the state treasurer and the state Division of Finance in causing the funds in the fund to be invested and the fund's investments sold or exchanged and the proceeds and income collected;
 - (h) apply for, receive, allocate, disburse, and account for, subject to approval and in conformance with policies adopted by the office, all grant funds made available by the United States, the state, foundations, corporations, and other businesses, agencies, or individuals;
 - (i) obtain and utilize the services of other governmental agencies upon request; and
 - (j) act in any other capacity or perform any other acts necessary for the office to successfully fulfill the office's statutory duties and objectives.
- (2) The director may request assistance from the department, the Commission on Criminal and Juvenile Justice, the Department of Public Safety, and other state agencies in conducting research or monitoring victims' programs.

Enacted by Chapter 291, 2026 General Session

75E-5-204 Staff duties.

In addition to any assignments made by the director, a compensation specialist shall:

- (1) hear and determine all matters relating to a compensation claim and reinvestigate or reopen a compensation claim without regard to statutes of limitation or periods of prescription;

- (2) obtain from prosecuting attorneys, law enforcement officers, and other criminal justice agencies, investigations and data to enable the compensation specialist to determine whether and to what extent a claimant qualifies for compensation;
- (3) as determined necessary by the compensation specialist, hold hearings, administer oaths or affirmations, examine any individual under oath or affirmation, issue subpoenas requiring the attendance and giving of testimony of witnesses, require the production of any books, papers, documents, or other evidence which may contribute to the compensation specialist's ability to determine particular compensation awards;
- (4) determine who is a victim or dependent;
- (5) award compensation or other benefits determined to be due under this chapter and the rules of the office made in accordance with Title 63G, Chapter 3, Utah Administrative Rulemaking Act;
- (6) take notice of judicially recognized facts and general, technical, and scientific facts within the compensation specialist's specialized knowledge;
- (7) advise and assist in developing policies recognizing the rights, needs, and interests of crime victims;
- (8) render periodic reports as requested by the Commission on Criminal and Juvenile Justice concerning:
 - (a) the compensation specialist's activities; and
 - (b) the manner in which the rights, needs, and interests of crime victims are being addressed by the state's criminal justice system;
- (9) establish priorities for assisting elderly victims of crime or those victims facing extraordinary hardships;
- (10) cooperate with the Commission on Criminal and Juvenile Justice to develop information regarding crime victims' problems and programs; and
- (11) assist the director in publicizing the provisions of the office, including the procedures for obtaining compensation, and in encouraging law enforcement agencies, health providers, and other related officials to take reasonable care to ensure that victims are informed about the provisions of this chapter and the procedure for applying for compensation.

Renumbered and Amended by Chapter 291, 2026 General Session

75E-5-205 Records -- Requirements for release.

- (1) Notwithstanding Title 63G, Chapter 2, Government Records Access and Management Act, a confidential record, a public restitution record, and a nonpublic restitution record may only be disclosed as provided in this section.
- (2) A confidential record may be provided to:
 - (a) the claimant who is the subject of the record if the record requested does not contain mental health treatment information; or
 - (b) the person who submitted the record to the office.
- (3) A confidential record may be used in:
 - (a) a criminal investigation or prosecution when the office suspects that a compensation claim may be fraudulent; or
 - (b) a subrogation action brought by the office in accordance with Section 75E-5-311.
- (4)
 - (a) The office may disclose a public restitution record for the purpose of carrying out this chapter.
 - (b) The office shall disclose a public restitution record to the Board of Pardons and Parole for a restitution matter.
- (5)

- (a) If the office requests restitution in a criminal case and the offender requests a restitution hearing, the office shall provide a nonpublic restitution record to the court, the prosecuting attorney, and counsel for the offender.
- (b) A person may not:
 - (i) disseminate a nonpublic restitution record obtained under this Subsection (5); or
 - (ii) share a nonpublic restitution record with the offender unless the office and claimant agree, in writing, to the disclosure.
- (6) Before the office may disclose a restitution record under Subsection (4) or (5), the office shall redact:
 - (a) the name, not including the initials, of a minor or an individual who has been the victim of a sexual assault;
 - (b) the contact information of a claimant or a witness, including a physical address, phone number, or email address;
 - (c) a claimant's date of birth and social security number; and
 - (d) any information that would jeopardize the health or safety of a claimant.

Renumbered and Amended by Chapter 291, 2026 General Session

75E-5-206 Rulemaking -- Exemption from Administrative Procedures Act.

- (1) The office shall make, in accordance with Title 63G, Chapter 3, Utah Administrative Rulemaking Act, rules for procedures for contested determinations by a compensation specialist.
- (2) The office is exempt from Title 63G, Chapter 4, Administrative Procedures Act.

Renumbered and Amended by Chapter 291, 2026 General Session

Part 3

Victim Compensation

75E-5-301 Definitions for part.

Reserved.

Enacted by Chapter 291, 2026 General Session

75E-5-302 Crime Victim Compensation Fund.

- (1)
 - (a) There is created an expendable special revenue fund known as the "Crime Victim Compensation Fund" to be administered and distributed as provided in this section by the office in cooperation with the Division of Finance.
 - (b) The fund shall consist of:
 - (i) appropriations by the Legislature; and
 - (ii) funds collected under Subsections (2) and (3).
 - (c) Money deposited in this fund is for victim compensation, other victim services, and, as appropriated, for administrative costs of the office.
- (2)

- (a) A percentage of the income earned by inmates working for correctional industries in a federally certified private sector prison industries enhancement program shall be deposited in the fund.
 - (b) The percentage of income deducted from inmate pay under Subsection (2)(a) shall be determined by the executive director of the Department of Corrections in accordance with the requirements of the private sector prison industries enhancement program.
- (3)
- (a) Judges are encouraged to, and may in their discretion, impose additional compensation to be paid into the fund by convicted criminals.
 - (b) The additional discretionary compensation may not exceed the statutory maximum fine permitted by Title 76, Criminal Offenses, for that offense.

Renumbered and Amended by Chapter 291, 2026 General Session

75E-5-303 Compensation award -- No right of action.

- (1) Compensation to a victim under this chapter is:
 - (a) limited to the money available in the fund; and
 - (b) not an entitlement program.
- (2) Failure to grant a compensation award does not create a right of action against the office, the state, or any of the state's subdivisions.
- (3) There is no right to judicial review over the decision of whether to grant a compensation award.
- (4) Failure to give or receive the notice required by this chapter does not:
 - (a) create a cause of action against:
 - (i) the state;
 - (ii) a state agency or local subdivision;
 - (iii) a law enforcement officer, agent, or employee of the state or local subdivision;
 - (iv) a health care or medical provider; or
 - (v) an agent or employee of a health care or medical provider; or
 - (b) affect or alter a requirement for filing or paying a compensation claim.

Renumbered and Amended by Chapter 291, 2026 General Session

75E-5-304 Compensation not to supplant restitution -- Assignment of claim for restitution judgment to Compensation Office.

- (1)
 - (a) A compensation award may not supplant an order for restitution under Title 77, Chapter 38b, Crime Victims Restitution Act, or under any other provision of law.
 - (b) An order for restitution may not be considered readily available as a collateral source for a compensation award granted under this chapter.
 - (c) Receipt of a compensation award under this chapter is considered an assignment of the victim's rights to restitution from the offender.
- (2) The court may not reduce an order for restitution based on a compensation award.
- (3)
 - (a)
 - (i) If a victim receives a compensation award and the office is assigned the victim's claim for restitution, or a portion of the victim's claim for restitution, under Section 75E-5-311, the office may file with the sentencing court a notice of restitution listing the amounts or

estimated future amounts of payments made or anticipated to be made to or on behalf of the victim.

- (ii) The office may provide a notice of restitution to the victim or victim's representative before or at sentencing.
 - (iii) The office's failure to provide notice under Subsection (3)(a)(i) or (ii) does not invalidate the imposition of the judgment or an order for restitution if the defendant is given the opportunity to object and be heard as provided in this chapter.
- (b)
- (i) Any objection by the defendant to the imposition or amount of restitution under Subsection (3)(a)(i) shall be:
 - (A) made at the time of sentencing; or
 - (B) made in writing within 20 days after the day on which the defendant receives the notice described in Subsection (3)(a) and filed with the court and a copy mailed to the office.
 - (ii) Upon an objection, the court shall allow the defendant a hearing on the issue.
 - (iii) After a hearing under Subsection (3)(b)(ii), the court shall:
 - (A) enter an order for restitution in accordance with Section 77-38b-205; and
 - (B) identify the office as an assignee for the order for restitution.
 - (iv) Subject to the right of the defendant to object, the amount of restitution sought by the office may be updated and the office identified as an assignee of an order for restitution in accordance with the time periods established under Section 77-38b-205.
- (4) If no objection is made or filed by the defendant under Subsection (3), the court shall upon conviction and sentencing:
- (a) enter an order for restitution in accordance with Section 77-38b-205; and
 - (b) identify the office as an assignee for the order for restitution.
- (5)
- (a) If the notice of restitution is filed after sentencing but during the term of probation or parole, the court shall:
 - (i) modify any order for restitution to include expenses paid by the office on behalf of the victim in accordance with Section 77-38b-205; and
 - (ii) identify the office as an assignee of the order for restitution.
 - (b) If an order for restitution has not been entered, the court shall:
 - (i) enter an order for restitution in accordance with Section 77-38b-205; and
 - (ii) identify the office as an assignee of the order for restitution.

Renumbered and Amended by Chapter 291, 2026 General Session

75E-5-305 Grounds for eligibility.

- (1) A victim is eligible for a compensation award under this chapter if:
- (a) the claimant is:
 - (i) a victim of criminally injurious conduct;
 - (ii) a dependent of a deceased victim of criminally injurious conduct; or
 - (iii) a representative acting on behalf of one of the above;
 - (b)
 - (i) the criminally injurious conduct occurred in Utah; or
 - (ii) the victim is a Utah resident who suffers injury or death as a result of criminally injurious conduct inflicted in a state, territory, or country that does not provide a crime victims' compensation program;

- (c) the application is made in writing in a form that conforms substantially to that prescribed by the office;
 - (d) the criminally injurious conduct is reported to a law enforcement officer, in the law enforcement officer's capacity as a law enforcement officer, or another federal or state investigative agency;
 - (e) the claimant or victim cooperates with the appropriate law enforcement agencies and prosecuting attorneys in efforts to apprehend or convict the perpetrator of the alleged offense; and
 - (f) the criminally injurious conduct occurred after December 31, 1986.
- (2) A compensation award may be made to a victim regardless of whether any individual is arrested, prosecuted, or convicted of the criminally injurious conduct giving rise to a compensation claim.
- (3)
- (a) Notwithstanding the requirements of Subsections (1)(d) and (e), a victim of sexual assault is not required to report the sexual assault to a law enforcement officer or another federal or state investigative agency or cooperate with the appropriate law enforcement agencies and prosecuting attorneys to be eligible for a compensation award under this section if:
 - (i) the victim seeks assistance from an advocacy services provider, a criminal justice system victim advocate, or a nongovernment organization victim advocate; and
 - (ii) the advocacy services provider, the criminal justice system victim advocate, or the nongovernment organization victim advocate completes a questionnaire, provided by the office, regarding the sexual assault.
 - (b) Notwithstanding the requirement of Subsection (1)(e), a victim who has suffered strangulation in the course of interpersonal violence is not required to cooperate with the appropriate law enforcement agencies and prosecuting attorneys to be eligible for a compensation award under this section if the victim:
 - (i) reports the strangulation to a law enforcement officer or another federal or state investigative agency after the strangulation occurs; or
 - (ii) seeks medical care for the strangulation immediately after the strangulation occurs.

Renumbered and Amended by Chapter 291, 2026 General Session

75E-5-306 Ineligible individuals -- Fraudulent compensation claims -- Penalties.

- (1) The following individuals are not eligible to receive a compensation award:
- (a) an individual who does not meet all of the provisions set forth in Section 75E-5-305;
 - (b) the offender;
 - (c) an accomplice of the offender;
 - (d) an individual whose receipt of a compensation award would unjustly benefit the offender, accomplice, or another individual reasonably suspected of participating in the offense;
 - (e) the victim of a motor vehicle injury who was the owner or operator of the motor vehicle and was not at the time of the injury in compliance with the state motor vehicle insurance laws;
 - (f) a convicted offender serving a sentence of imprisonment in any prison or jail or residing in any other correctional facility;
 - (g) an individual who is on probation or parole if the circumstances surrounding the offense of which the individual is a victim is a violation of the individual's probation or parole;
 - (h) an individual whose injuries are the result of criminally injurious conduct that occurred in a prison, jail, or another correctional facility while the individual was incarcerated; and
 - (i) an individual who:

- (i) submits a fraudulent claim; or
 - (ii) misrepresents a material fact in requesting a compensation award.
- (2)
 - (a) An individual may not knowingly:
 - (i) submit a fraudulent claim; or
 - (ii) misrepresent a material fact in requesting a compensation award.
 - (b) A violation of Subsection (2)(a) is:
 - (i) a class B misdemeanor if:
 - (A) the individual who violates Subsection (2)(a) does not receive a compensation award; or
 - (B) the value of the compensation award received is less than \$500;
 - (ii) a class A misdemeanor if the value of the compensation award received is or exceeds \$500 but is less than \$1,500;
 - (iii) a third degree felony if the value of the compensation award received is or exceeds \$1,500 but is less than \$5,000; and
 - (iv) a second degree felony if the value of the compensation award received is or exceeds \$5,000.
- (3) The attorney general may prosecute violations under this section or may make arrangements with county or city attorneys for the prosecution of violations under this section when the attorney general cannot conveniently prosecute.
- (4)
 - (a) A claimant who is not eligible to receive a compensation award under Subsection (1) but receives a compensation award shall reimburse the fund for the amount of the compensation award.
 - (b) The office may bring a civil action against a victim who does not reimburse the fund for the amount of the compensation award in accordance with Subsection (4)(a).

Renumbered and Amended by Chapter 291, 2026 General Session

75E-5-307 Compensation award process -- Additional testing -- Failure to comply -- Waiver of privilege.

- (1)
 - (a) If the mental, physical, or emotional condition of a victim is material to a compensation claim, the compensation specialist, director, or the assistant director compensation program manager who hears the compensation claim or the appeal may order the claimant to submit to a mental or physical examination by a physician or psychologist and may recommend to the court to order an autopsy of a deceased victim.
 - (b) The court may order an additional examination for good cause shown and shall provide notice to the individual to be examined and the individual's representative.
 - (c) All reports from additional examinations shall set out findings, including results of all tests made, diagnoses, prognoses, other conclusions, and reports of earlier examinations of the same conditions.
 - (d) A copy of the report shall be made available to the victim or the representative of the victim unless dissemination of that copy is prohibited by law.
- (2) If an individual refuses to comply with an order under this chapter or asserts a privilege, except privileges arising from the attorney-client relationship, to withhold or suppress evidence relevant to a compensation claim, the director or compensation specialist may make any appropriate determination, including denial of the compensation claim.
- (3)

- (a) A victim who is a claimant waives any privilege as to communications or records relevant to an issue of the physical, mental, or emotional conditions of the victim except for the attorney-client privilege.
- (b) The waiver described in Subsection (3)(a) applies only to compensation specialists, the director, the assistant director compensation program manager, and legal counsel.
- (c) A claimant may be required to supply any additional medical or psychological reports available relating to the injury or death for which compensation is claimed.
- (d) The compensation specialist hearing a compensation claim or an appeal from a compensation claim shall make available to the claimant a copy of the report.
- (e) If the victim is deceased, the director or the director's appointee, on request, shall furnish the claimant a copy of the report unless dissemination of that copy is prohibited by law.

Renumbered and Amended by Chapter 291, 2026 General Session

75E-5-308 Determination of eligibility for victim compensation -- Law enforcement agency to provide investigative reports -- Restrictions on usage -- Criminal penalty.

- (1)
- (a) Notwithstanding Section 63G-2-206, and subject to Subsection (1)(c), a law enforcement agency shall provide a copy of an investigative report that describes the facts and circumstances of a criminal episode within 10 business days of the date the law enforcement agency receives a request for that information from the office.
 - (b) Before releasing an investigative report, the law enforcement agency may redact the following information:
 - (i) the name of:
 - (A) an undercover officer; or
 - (B) a confidential informant; and
 - (ii) any information that would:
 - (A) jeopardize the investigation; or
 - (B) disclose law enforcement techniques not generally known to the public.
 - (c) If a criminal episode remains under investigation when the office requests an investigative report and the law enforcement agency determines that release of an investigative report at that time would jeopardize the investigation, a law enforcement agency may provide a detailed description of the following information, instead of providing an investigative report, within 10 business days of the date the law enforcement agency received the original request from the office:
 - (i) the law enforcement agency's case number;
 - (ii) the location where the criminal episode occurred;
 - (iii) the criminal conduct under investigation;
 - (iv) a summary of the criminal episode;
 - (v) verification that the claimant is a victim of the criminal conduct;
 - (vi) any information regarding whether the claimant's conduct may have contributed to the criminal conduct; and
 - (vii) whether the claimant was and continues to be cooperative with law enforcement.
 - (d) An investigative report provided under Subsection (1)(a), or information provided under Subsection (1)(c), shall contain sufficient information for the office to determine whether a claimant is eligible for a compensation award under Sections 75E-5-305 and 75E-5-306.

- (e) If an investigative report or information provided to the office by a law enforcement agency is not sufficient for the office to determine whether a claimant is eligible for a compensation award, the office may contact the law enforcement agency for additional information.
- (f)
 - (i) A law enforcement agency may give written notice that a request may take up to an additional 10 business days to process if exigent circumstances exist, which include:
 - (A) a circumstance in which another agency is using relevant documents;
 - (B) a circumstance in which the request requires review of a voluminous amount of documents;
 - (C) a circumstance in which the request requires legal review;
 - (D) a circumstance in which the request requires extensive redaction;
 - (E) a circumstance in which the law enforcement agency is currently processing multiple requests; or
 - (F) any other exigent circumstance.
 - (ii) Notice of an extended response time shall include the type of exigent circumstances involved and the new due date for the response.
- (2)
 - (a) An investigative report provided under this section may only be used for the purpose of carrying out the provisions of this chapter.
 - (b) An investigative report received under this section:
 - (i) may only be viewed by the office and legal counsel for the office; and
 - (ii) may not be further disclosed or disseminated for any reason.
- (3) The office shall dispose of or retain an investigative report received under this section in a secure manner.
- (4) An investigative report provided to the office under this section is not subject to the provisions of Title 63G, Chapter 2, Government Records Access and Management Act.
- (5) A public employee or other person who knowingly or intentionally uses or distributes an investigative report, or information received from an investigative report, in violation of the requirements of Subsection (2) is guilty of a class B misdemeanor.

Renumbered and Amended by Chapter 291, 2026 General Session

75E-5-309 When a compensation award may be granted -- Limitations.

- (1) The office may grant a compensation award if:
 - (a) the compensation specialist finds the compensation claim satisfies the requirements for the compensation award under the provisions of this chapter and the rules of the office;
 - (b) money is available in the fund;
 - (c) the individual for whom the compensation award is to be paid is otherwise eligible under this chapter; and
 - (d) the compensation claim is for an allowable expense incurred by the victim, as follows:
 - (i) reasonable and necessary charges incurred for products, services, and accommodations;
 - (ii) inpatient and outpatient medical treatment and physical therapy, subject to rules made by the office in accordance with Title 63G, Chapter 3, Utah Administrative Rulemaking Act;
 - (iii) mental health counseling that:
 - (A) is set forth in a mental health treatment plan that is approved before any payment is made by a compensation specialist; and

- (B) qualifies within any further rules made by the office in accordance with Title 63G, Chapter 3, Utah Administrative Rulemaking Act;
 - (iv) actual loss of past earnings and anticipated loss of future earnings because of a death or disability resulting from the personal injury at a rate not to exceed 66-2/3% of the individual's weekly gross salary or wages or the maximum amount allowed under the state workers' compensation statute;
 - (v) care of minor children enabling a victim or spouse of a victim, but not both, to continue gainful employment at a rate per child per week as determined under rules established by the office in accordance with Title 63G, Chapter 3, Utah Administrative Rulemaking Act;
 - (vi) funeral and burial expenses for death caused by the criminally injurious conduct, subject to rules made by the office in accordance with Title 63G, Chapter 3, Utah Administrative Rulemaking Act;
 - (vii) loss of support to a dependent not otherwise compensated for a pecuniary loss for personal injury, for as long as the dependence would have existed had the victim survived, at a rate not to exceed 66-2/3% of the individual's weekly salary or wages or the maximum amount allowed under the state workers' compensation statute, whichever is less;
 - (viii) personal property necessary and essential to the health or safety of the victim as defined by rules made by the office in accordance with Title 63G, Chapter 3, Utah Administrative Rulemaking Act;
 - (ix) medical examinations, subject to rules made by the office in accordance with Title 63G, Chapter 3, Utah Administrative Rulemaking Act, which may allow for exemptions from Section 75E-5-305 and Subsections (2), 75E-5-304(1)(b), 75E-5-304(1)(c), 75E-5-311(4), 75E-5-311(6), 75E-5-311(7), and 75E-5-311(8); and
 - (x) for a victim of sexual assault who becomes pregnant from the sexual assault, health care:
 - (A) for the victim during the duration of the victim's pregnancy if the health care is related to or resulting from the sexual assault or the pregnancy; and
 - (B) for the victim and the victim's child for one year after the day on which the victim's child is born.
- (2)
- (a) The office may reduce or deny a compensation award otherwise payable to a claimant if:
 - (i) the economic loss upon which the claim is based has been or could be recouped from other persons, including collateral sources;
 - (ii) the compensation specialist considers the compensation claim unreasonable because of the misconduct of the claimant; or
 - (iii) the victim did not use a facility or health care provider that would be covered by a collateral source.
 - (b) When two or more dependents are entitled to a compensation award as a result of a victim's death, the compensation specialist shall apportion the compensation award among the dependents.
- (3)
- (a) If a compensation specialist determines that a claimant will suffer financial hardship unless an emergency compensation award is made, and a final compensation award appears likely, the office may pay an amount to the claimant, to be deducted from the final compensation award or repaid by and recoverable from the claimant to the extent that the payment exceeds the final compensation award.
 - (b) The office may limit emergency compensation awards under Subsection (3)(a) to any amount the office considers necessary.
- (4)

- (a) Except as provided in Subsection (4)(b), a compensation award may not exceed \$25,000 including any compensation award for a secondary victim.
- (b) A compensation award for medical expenses resulting from serious bodily injury or substantial bodily injury may not exceed \$50,000.
- (5) Unless otherwise requested by the claimant, the office shall pay a compensation award for the victim before a compensation award for a secondary victim.
- (6) The compensation specialist shall determine the priority of payment among multiple secondary victims on a single compensation claim.

Renumbered and Amended by Chapter 291, 2026 General Session

75E-5-310 Notification of claimant -- Suspension of proceedings.

- (1)
 - (a) The office shall immediately notify the claimant in writing of a compensation award and shall forward to the Division of Finance a certified copy of the compensation award and a warrant request for the amount of the compensation award.
 - (b) The Division of Finance shall pay the claimant the amount submitted to the division, out of the fund.
 - (c) If money in the fund is temporarily depleted, the office shall place claimants approved to receive a compensation award on a waiting list and provide the compensation awards as funds are available in the order in which the compensation awards are approved.
- (2) The compensation specialist may suspend the proceedings pending disposition of a criminal prosecution that is commenced or is imminent.

Renumbered and Amended by Chapter 291, 2026 General Session

75E-5-311 Acceptance of a compensation award -- Assignment of recovery -- Reimbursement.

- (1)
 - (a) By accepting a compensation award, a victim:
 - (i) automatically assigns to the office any claim the victim may have relating to criminally injurious conduct in the compensation claim; and
 - (ii) is required to reimburse the office if the victim recovers any money relating to the criminally injurious conduct.
 - (b) The office's right of assignment and reimbursement under Subsection (1)(a) is limited to the lesser of:
 - (i) the amount paid by the office; or
 - (ii) the amount recovered by the victim from the third party.
 - (c) The office may be reimbursed under Subsection (1)(a) regardless of whether the office exercises the office's right of assignment under Subsection (1)(a).
- (2) The commissioner, with the concurrence of the director, may reduce the office's right of reimbursement if the commissioner determines that:
 - (a) the reduction will benefit the fund; or
 - (b) the victim has ongoing expenses related to the offense upon which the compensation claim is based and the benefit to the victim of reducing the office's right of reimbursement exceeds the benefit to the office of receiving full reimbursement.
- (3) The office reserves the right to make a claim for reimbursement on behalf of the victim.

- (4) The victim may not discharge a claim against an individual or entity without the office's written permission.
- (5) The victim may not impair the office's:
 - (a) claim; or
 - (b) right of reimbursement.
- (6) The victim shall fully cooperate with the office in pursuing the office's right of reimbursement, including providing the office with any evidence in the victim's possession.
- (7) The office's right of reimbursement applies regardless of whether the victim is fully compensated for the victim's losses.
- (8) Notwithstanding Subsection 75E-5-309(2)(a)(i), a victim of a sexual offense who requests testing of the victim's self may be reimbursed for the costs of the HIV test only as provided in Subsection 53-10-803(4).

Renumbered and Amended by Chapter 291, 2026 General Session

75E-5-312 Payment of a compensation award -- Claims against the award -- Review.

- (1)
 - (a) Except as provided in Subsection (1)(b), a compensation specialist may provide for the payment of a compensation award in a lump sum or in installments.
 - (b)
 - (i) The compensation specialist shall pay the part of a compensation award equal to the amount of economic loss accrued to the date of the compensation award in a lump sum.
 - (ii) A compensation specialist may not pay allowable expense that would accrue after an initial compensation award is made in a lump sum.
 - (iii) Except as provided in Subsection (2), a compensation specialist shall award the part of a compensation award that may not be paid in a lump sum under this Subsection (1)(b) in installments.
- (2) At the request of the claimant, the compensation specialist may convert future economic loss installment payments, other than allowable expense, to a lump sum payment, discounted to present value, but only upon a finding by the compensation specialist that the compensation award in a lump sum will promote the interests of the claimant.
- (3)
 - (a) A compensation award for future economic loss payable in installments may be made only for a period for which the compensation specialist can reasonably determine future economic loss.
 - (b) The compensation specialist may reconsider and modify a compensation award for future economic loss payable in installments, upon the compensation specialist's finding that a material and substantial change of circumstances has occurred.
- (4) A compensation award is not subject to execution, attachment, or garnishment, except that a compensation award for allowable expense is not exempt from a claim of a creditor to the extent that the creditor provided products, services, or accommodations, the costs of which are included in the compensation award.
- (5) An assignment or agreement to assign a compensation award for loss accruing in the future is unenforceable, except:
 - (a) an assignment of a compensation award of compensation for work loss to secure payment of alimony, maintenance, or child support;
 - (b) an assignment of a compensation award for allowable expense to the extent that the benefits are for the cost of products, services, or accommodations necessitated by the injury or

death on which the compensation claim is based and are provided or to be provided by the assignee; or

- (c) an assignment to repay a loan obtained to pay for the obligations or expenses described in Subsection (5)(a) or (b).
- (6)
 - (a) A compensation specialist shall review at least annually every compensation award being paid in installments.
 - (b) An order on review of a compensation award does not require refund of amounts previously paid unless the compensation award was obtained by fraud or a material mistake of fact.

Renumbered and Amended by Chapter 291, 2026 General Session

75E-5-313 Payments to medical service providers.

- (1)
 - (a) Except as provided in Subsection (2), a medical service provider who accepts payment from the office:
 - (i) shall agree to accept payments as payment in full on behalf of the victim or claimant; and
 - (ii) may not attempt to collect further payment from the victim or the claimant for services for which the office has made payment.
 - (b) If the office is unable to make full payment in accordance with the office's rules, the medical service provider may collect from the victim or claimant, but not more than the amount the provider would have received from the office.
- (2)
 - (a) When a medical service provider receives notice that a compensation claim has been filed, the medical service provider may not, before the office determines whether to issue a compensation award, engage in debt collection for the claim, including:
 - (i) repeatedly calling or writing to a victim and threatening to refer unpaid health care costs to a debt collection agency, attorney, or other person for collection; or
 - (ii) filing for or pursuing a legal remedy for payment of unpaid health care costs.
 - (b) The statute of limitations for collecting a debt is tolled during the time in which a request for a compensation award is being reviewed by the office.
- (3) The office may:
 - (a) use the fee schedule utilized by the Utah Public Employees Health Plan or any other fee schedule adopted by the office; and
 - (b) make rules in accordance with Title 63G, Chapter 3, Utah Administrative Rulemaking Act, necessary to implement the fee schedule adopted in accordance with this section.

Renumbered and Amended by Chapter 291, 2026 General Session

75E-5-314 Attorney fees.

- (1) The claims procedures shall be sufficiently simple that the assistance of an attorney is unnecessary, and no attorney fees may be paid for the assistance of an attorney or any other representative in filing the compensation claim or providing information to the compensation specialist.
- (2) Attorney fees may be granted in the following circumstances and shall be paid out of the compensation award not to exceed 15% of the amount of the compensation award:
 - (a) when a compensation award is denied and, after a hearing, the decision to deny is overturned; or

- (b) when minor dependents of a deceased victim require assistance in establishing a trust or determining a guardian.
- (3)
 - (a) An attorney or any other person providing assistance in a compensation claim, who contracts for or receives sums not allowed under this chapter, is guilty of a class B misdemeanor.
 - (b) This Subsection (3) does not apply to attorneys who assist the victim in filing a civil action against the perpetrator.

Renumbered and Amended by Chapter 291, 2026 General Session